SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC038294: JOHN VON COLLN, et al. vs FCA US, LLC., et al.
08/26/2026 in Department 44
Motion for Judgment on the Pleadings

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at https://www2.ventura.courts.ca.gov/Courtroom/C44.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

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No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant FCA US, LLC's Motion for Judgment on the Pleadings

Tentative Ruling:

Defendant FCA US, LLC's Motion for Judgment on the Pleadings is DENIED as to Plaintiffs' First, Second, and Third Causes of Action.

Defendant has withdrawn its Motion as to Plaintiffs' Fourth Cause of Action for breach of the implied warranty of merchantability and Sixth Cause of Action for fraudulent inducement/concealment. No ruling on the merits of those causes of action is therefore made.

Plaintiffs' alternative request to stay the action pending resolution of *Price v. General Motors*, Second District Court of Appeal No. B353231, is DENIED AS MOOT.

Defendant FCA US, LLC to give notice.

I. Background

A. Factual Background

Plaintiffs John Von Colln and VC Defense Inc. ("Plaintiffs") allege that on or about December 21, 2016, they entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2017 Ram 1500, VIN 1C6RR7TT1HS568549 (the "Vehicle"), manufactured and/or distributed by FCA. (Compl., ¶ 8.) FCA allegedly provided several express warranties, including bumper-to-bumper, powertrain, and emissions warranties. (*Id*., ¶ 9.) Plaintiffs allege that their claims arise from FCA's warranty obligations concerning a vehicle for which FCA issued a written warranty. (*Id*., ¶ 12.)

Plaintiffs allege that engine, transmission, electrical, and other defects and nonconformities manifested during the applicable express-warranty period and substantially impaired the Vehicle's use, value, or safety. (Compl., ¶¶ 13-14.) They further allege that FCA knew before Plaintiffs acquired the Vehicle that 2017 Ram 1500 vehicles equipped with the 5.7-liter engine had an engine defect capable of causing loss of power, stalling, rough running, misfires, or engine failure. (*Id.*, ¶¶ 17-20.)

Plaintiffs allege that FCA and its representatives were unable to repair the Vehicle to conform to the applicable express warranties after a reasonable number of opportunities and nevertheless failed to replace the Vehicle or make restitution. (Compl., ¶¶ 29-30, 42.) Plaintiffs allege that they discovered Defendants' wrongful conduct shortly before filing suit, after the Vehicle continued to exhibit symptoms following FCA's unsuccessful repair attempts. (*Id*., ¶ 39.)

The First Cause of Action alleges that FCA breached the express written warranty in violation of Civil Code section 1793.2, subdivision (d). (Compl., ¶¶ 41-46.)

The Second Cause of Action alleges that FCA violated Civ. Code § 1793.2(b) by failing to commence repairs within a reasonable time and failing to complete warranty repairs within 30 days. (Compl., ¶¶ 47-51.)

The Third Cause of Action alleges that FCA violated Civ. Code § 1793.2(a)(3) by failing to make sufficient service literature and replacement parts available to authorized service and repair facilities during the express-warranty period. Plaintiffs expressly bring this claim pursuant to Civ. Code § 1794 and seek a civil penalty under § 1794(c). (Compl., ¶¶ 52-54.)

The Complaint also alleges generally that any applicable limitation periods have been tolled by equitable tolling, the discovery rule, fraudulent concealment, equitable estoppel, the repair rule, and class-action tolling. (Compl., ¶¶ 38-39.)

B. Procedural Background

Plaintiffs filed the Complaint on February 14, 2025, asserting six causes of action: (1) breach of express warranty in violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b);

(3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair against the dealer; and (6) fraudulent inducement/concealment.

On May 8, 2025, FCA demurred to the First through Fourth and Sixth Causes of Action and separately moved to strike the punitive-damages prayer. Among other arguments, FCA contended the warranty claims were barred by Commercial Code § 2725 and the fraud claim was barred by Code Civ. Proc. § 338(d).

On June 5, 2025, the Court overruled the demurrer and denied the motion to strike. As pertinent here, the Court found the Complaint did not clearly and affirmatively establish that the Song-Beverly claims were barred by the then-asserted statute of limitations. Relying in part on Complaint paragraph 39 and *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, the Court concluded resolution of the limitations issue was premature. FCA filed its Answer on June 11, 2025.

Plaintiffs subsequently amended the Complaint to correct the dealer defendant's name to Shaver Automotive Group, Inc. The Court signed the amendment on July 29, 2025. Shaver answered on October 7, 2025.

FCA filed the present Motion for Judgment on the Pleadings on January 29, 2026. FCA initially sought judgment on the First through Fourth and Sixth Causes of Action, arguing that they were barred by the six-year limitations/repose period enacted as Code Civ. Proc. § 871.21. FCA asserts that Plaintiffs acquired the Vehicle on December 21, 2016, making December 21, 2022 the six-year deadline, while the Complaint was not filed until February 14, 2025.

Plaintiffs filed opposition on August 13, 2026. They principally argue: (1) Code Civ. Proc. § 871.21 cannot constitutionally be applied retroactively to extinguish claims whose asserted statutory deadline expired before the statute existed; (2) this action was filed before FCA had elected to proceed under the AB 1755/SB 26 procedures; (3) Code Civ. Proc. § 871.21 does not encompass the Third Cause of Action under Civ. Code § 1793.2(a)(3); and (4) tolling principles prevent judgment on the pleadings. Alternatively, Plaintiffs request a stay pending *Price v. General Motors*, Second District Court of Appeal No. B353231, or leave to amend.

FCA filed its Reply on August 18, 2026. FCA contends the Legislature intended Code Civ. Proc. § 871.21 to apply to existing claims and that Plaintiffs had a reasonable opportunity between enactment of AB 1755 on September 29, 2024 and its January 1, 2025 effective date to file suit. FCA further argues that Code Civ. Proc. § 871.21(c) contains the exclusive grounds for tolling.

In its reply, FCA expressly withdraws the motion insofar as it challenged the Fourth Cause of Action for breach of implied warranty and the Sixth Cause of Action for fraudulent concealment. The motion therefore remains directed only to the First, Second, and Third Causes of Action.

Jury trial is presently scheduled for February 22, 2027.

II. Preliminary Matters

A. Scope of the Motion

Because FCA expressly withdrew its challenge to the Fourth and Sixth Causes of Action in Reply, the Court addresses only the First, Second, and Third Causes of Action.

The Fifth Cause of Action for negligent repair is asserted against Shaver and has not been challenged by FCA.

B. Prior Demurrer

The June 5, 2025 ruling does not preclude consideration of the present motion. Code Civ. Proc. § 438 permits a defendant that previously demurred to move for judgment on the pleadings on a ground not previously raised by demurrer. (Code Civ. Proc. § 438(g)(1).)

Although FCA previously asserted a limitations defense, the prior demurrer relied upon Commercial Code § 2725. The present motion asserts a distinct statutory defense under Code Civ. Proc. §§ 871.20 through 871.30. The Court may therefore consider the present ground.

C. Meet and Confer, Service, and Notice

Before filing a motion for judgment on the pleadings, the moving party must meet and confer in person or by telephone with the party who filed the challenged pleading. (Code Civ. Proc. § 439(a).)

Attorney Steven D. Park declares that counsel telephonically met and conferred on December 2, 2025 regarding the grounds for the motion and were unable to resolve the issues. (Park Decl., ¶ 1.) The meet-and-confer requirement is satisfied.

The motion was electronically served on Plaintiffs on January 29, 2026. The Opposition was filed and electronically served August 13, 2026, and the Reply was filed and electronically served August 18, 2026. Service and notice appear proper.

D. FCA's Election Under Code Civ. Proc. §§ 871.29 and 871.30

Code Civ. Proc. § 871.20 applies to specified actions against a motor-vehicle manufacturer "who has elected under Section 871.29 to proceed under this chapter." (Code Civ. Proc., § 871.20, subd. (a).) Code Civ. Proc. § 871.30 further addresses manufacturers' elections with respect to vehicles sold in 2025 or earlier and actions filed before the April 2, 2025 effective date of SB 26.

FCA asserts in its moving papers that it has opted into the statutory scheme and that its participation "is publicly available and may be confirmed by the Court through the California Department of Consumer Affairs." FCA has not, however, submitted the election itself or a separate request for judicial notice establishing the date and terms of its election. Plaintiffs specifically dispute that FCA had opted into the statutory scheme when this action was filed on February 14, 2025.

A motion for judgment on the pleadings must be determined from the face of the challenged pleading and matters properly subject to judicial notice. (Code Civ. Proc. § 438(d); *Kapsimallis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672.) Thus, the present record does not itself establish all facts concerning FCA's election.

The Court need not resolve the motion on that ground, however. Even assuming for purposes of the motion that FCA timely made the election required by Code Civ. Proc. §§ 871.29 and 871.30 and that the statutory chapter therefore applies to this action, FCA has not established that Code Civ. Proc. § 871.21(b) bars Plaintiffs' First through Third Causes of Action as a matter of law.

III. Discussion

A. Legal Standard: Motion for Judgment on the Pleadings

A defendant may move for judgment on the pleadings on the ground that "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc. § 438(c)(1)(B)(ii).)

A motion for judgment on the pleadings performs substantially the same function as a general demurrer and is governed by essentially the same rules. (*Kapsimallis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672; *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) The Court accepts as true all properly pleaded material facts, but not contentions, deductions, or conclusions of fact or law. (*Kapsimallis*, supra, at 672; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A limitations defense may support judgment on the pleadings only where the bar clearly and affirmatively appears from the pleading and any properly judicially noticed matters. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-1316.) It is insufficient that the action merely may be barred. (*Committee for Green Foothills*, supra, at 42.) Resolution of a limitations issue is ordinarily a question of fact. (*E-Fab*, supra, at 1320.)

B. Code Civ. Proc. § 871.21 Does Not Establish a Complete Bar to the First Through Third Causes of Action

1. Statutory Framework

"An action covered by Code Civ. Proc. § 871.20 shall be commenced within one year after the expiration of the applicable express warranty." (Code Civ. Proc. § 871.21(a).)

Notwithstanding subdivision (a), an action covered by Code Civ. Proc. § 871.20 "shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc. § 871.21(b).)

The statutory periods are expressly tolled: (1) as provided by Civ. Code § 1793.22(c), as applicable; (2) for the time the vehicle is out of service by reason of repair for a nonconformity; and (3) for a period not exceeding 60 days after the requisite pre-suit notice. (Code Civ. Proc. § 871.21(c).)

Code Civ. Proc. § 871.20 limits the chapter to specified actions against manufacturers that have elected to proceed under the statutory scheme. (Code Civ. Proc. § 871.20(a).)

2. The Third Cause of Action Is Within Code Civ. Proc. § 871.20 if the Chapter Otherwise Applies

Plaintiffs argue the Third Cause of Action cannot fall within Code Civ. Proc. § 871.20 because it alleges a violation of Civ. Code § 1793.2(a)(3), which is not specifically enumerated in Code Civ. Proc. § 871.20(a).

The argument is unpersuasive. Code Civ. Proc. § 871.20(a) applies, among other things, to an action seeking restitution or replacement pursuant to Civ. Code § 1794, or civil penalties pursuant to Civ. Code § 1794(c), where the request for restitution or replacement is based on noncompliance with an applicable express warranty.

Here, the Third Cause of Action alleges that FCA violated Civ. Code § 1793.2(a)(3) by failing to make sufficient service literature and replacement parts available to its authorized repair facilities during the express-warranty period. Plaintiffs expressly allege that they bring the claim pursuant to Civ. Code § 1794 and seek a civil penalty under Civ. Code § 1794(c). (Compl., ¶¶ 53-54.)

Accordingly, assuming the statutory chapter otherwise applies to this action, the fact that the underlying statutory violation is pleaded under Civ. Code § 1793.2(a)(3) does not, by itself, place the Third Cause of Action outside Code Civ. Proc. § 871.20.

3. Applying the Six-Year Bar as FCA Proposes Would Give Code Civ. Proc. § 871.21 Retroactive Effect

The Complaint alleges that the warranty contract was entered into on or about December 21, 2016. (Compl., ¶ 8.) FCA treats that date as the date of original delivery and reasons that the six-year period expired on December 21, 2022. The Complaint was filed on February 14, 2025.

Code Civ. Proc. § 871.21 did not become effective until January 1, 2025. FCA therefore seeks to apply a statute first effective in 2025 to establish that Plaintiffs irrevocably lost their claims in December 2022.

California law generally presumes a statute operates prospectively unless the Legislature has clearly provided otherwise. (*McClung v. Employment Development Dept.* (2004) 34 Cal.4th 467, 475.) Even where a shortened limitations period may be applied to a preexisting cause of action, due process requires that the claimant receive a reasonable period in which to pursue the existing remedy. (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment*

Relations Bd. (2005) 35 Cal.4th 1072, 1092; *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-123.)

In *Coachella Valley Mosquito*, the Supreme Court held that legislation shortening a limitations period could apply to preexisting claims so long as claimants received a reasonable time in which to proceed. The Court approved application of the shortened period prospectively from the statute's effective date where necessary to provide that reasonable opportunity. (*Coachella Valley Mosquito*, supra, at 1092.) Similarly, *Rosefield Packing* recognizes that retroactive application is impermissible if the new statute immediately cuts off an existing remedy or leaves no reasonable opportunity to exercise it. (*Rosefield Packing*, supra, at 122-123.)

That is the consequence of FCA's construction here. Under FCA's theory, when Code Civ. Proc. § 871.21 became effective on January 1, 2025, Plaintiffs 'deadline had already expired more than two years earlier. Plaintiffs therefore would have had no period after the statute took effect in which to comply with its newly imposed six-year deadline.

Plaintiffs cite the recent federal decision in *Galdamez v. FCA US LLC* (C.D.Cal. 2026) 830 F.Supp.3d 982, 986, which addressed the same statute and rejected FCA's proposed retroactive application. There, the court reasoned that applying Code Civ. Proc. § 871.21 to extinguish a claim based on a limitations date preceding the statute's effective date would necessarily give the statute retroactive effect, and found insufficient indication that the Legislature intended that result. Although *Galdamez* is not binding authority, its reasoning is persuasive. (See *Aleman v. AirTouch Cellular* (2012) 209 Cal.App.4th 556, 576, fn. 8 [federal district court decisions are persuasive but not binding].)

FCA responds that AB 1755 was signed on September 29, 2024, giving Plaintiffs approximately three months before January 1, 2025 to file suit. FCA relies upon *Rosefield Packing*, supra, at 122-123, and *Kerckhoff-Cuzner Mill & Lumber Co. v. Olmstead* (1890) 85 Cal. 80, 84.

The argument is unpersuasive in this procedural posture. In *Rosefield Packing*, the newly prescribed period had not already expired when the amended statute became effective; the plaintiff still had nearly one year after the statute became effective in which to act. (*Rosefield Packing*, supra, at 123-124.) By contrast, FCA's construction here would cause Code Civ. Proc. § 871.21 to extinguish Plaintiffs 'claims immediately upon the statute's effective date based on a deadline that expired in 2022.

Moreover, *Coachella Valley Mosquito*, the more recent Supreme Court authority, recognizes that where necessary to preserve a reasonable opportunity to sue, the shortened period is applied prospectively beginning with the statute's effective date. (*Coachella Valley Mosquito*, supra, at 1092.)

Plaintiffs filed this action on February 14, 2025, approximately six weeks after Code Civ. Proc. § 871.21 became effective and before SB 26 added the present manufacturer-election provisions on April 2, 2025. The Court therefore cannot conclude on the pleadings that the six-year period in Code Civ. Proc. § 871.21 eliminated Plaintiffs' First through Third Causes of Action before they filed suit.

4. Code Civ. Proc. § 871.30 Does Not Require a Different Result

Code Civ. Proc. § 871.30 expressly contemplates that a manufacturer's election may cause the statutory chapter to apply to certain actions already filed between January 1 and April 2, 2025. Accordingly, the Court does not conclude that the Legislature intended Code Civ. Proc. §§ 871.20 through 871.30 to apply only to actions filed after the manufacturer's election.

This does not resolve the separate question presented by FCA's application of Code Civ. Proc. § 871.21(b). FCA contends that because the Vehicle was originally delivered on December 21, 2016, the newly enacted six-year period expired on December 21, 2022, more than two years before Code Civ. Proc. § 871.21 became effective.

California Supreme Court authority provides that, although a Legislature may shorten a limitations period and may in appropriate circumstances apply the new period to existing claims, the affected claimant must be afforded a reasonable opportunity to pursue the existing remedy. (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072, 1092; *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-123.) Where necessary to provide such a reasonable opportunity, the shortened period may be applied prospectively from the effective date of the new statute. (*Coachella Valley Mosquito*, supra, at 1092.)

Thus, even assuming FCA's election makes the statutory chapter applicable to this action, Code Civ. Proc. § 871.30 does not establish that Plaintiffs' claims may constitutionally be deemed to have expired in December 2022 pursuant to a statutory deadline that did not then exist. FCA therefore has not established its Code Civ. Proc. § 871.21(b) defense as a matter of law on the pleadings.

5. The Court Need Not Determine the Full Scope of Permissible Tolling

The parties separately dispute whether equitable tolling or the delayed-discovery rule may operate in addition to the tolling provisions expressly identified in Code Civ. Proc. § 871.21(c). The Court need not resolve that issue to decide the present motion.

Code Civ. Proc. § 871.21(c)(2) itself provides for tolling during the time that a motor vehicle is out of service by reason of repair for a nonconformity. The Complaint alleges that FCA was afforded multiple opportunities to repair the Vehicle, that the repairs were unsuccessful, and that the Vehicle continued to exhibit symptoms following those repair attempts. (Compl., ¶¶ 29, 39, 42, 48.) The Complaint does not allege the dates of those repairs or the number of days the Vehicle was out of service.

Accordingly, even assuming Code Civ. Proc. § 871.21 applies and even without deciding whether any additional equitable tolling doctrine remains available, the face of the Complaint does not establish the amount of tolling expressly authorized by Code Civ. Proc. § 871.21(c)(2). Because a limitations defense supports judgment on the pleadings only when the bar clearly and affirmatively appears from the pleading and judicially noticeable matters, this provides an additional reason the present motion cannot be granted. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-1316.)

C. Plaintiffs' Alternative Request for a Stay

Plaintiffs alternatively request a stay pending the Second District Court of Appeal's decision in *Price v. General Motors*, No. B353231, which they contend presents a similar retroactivity issue.

Because the Court recommends denying FCA's motion, Plaintiffs' alternative stay request is MOOT. Even if reached, Plaintiffs have not demonstrated that a stay of the entire action for an indeterminate appellate period is necessary. The request is therefore denied.